

sympathetic to BANA's obvious frustration at the course the 2017 litigation has taken, the Court is not prepared to exercise its discretion and declare Plaintiff a vexatious litigant on this record. (See *Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972 [held: evidence was insufficient to support a vexatious litigant designation based on three unsuccessful motions filed over three years as to two separate judgments where the motions were not intended solely to harass, and there was no evidence of persistent or obsessive litigiousness, serious financial harm, or an unreasonable burden on the courts].)

Based on the foregoing, the motion is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff is to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.

Don Lee v. Bank of America, N.A., et al.

20CV44796

DEFENDANT'S MOTION TO STRIKE PUNITIVE DAMAGES ALLEGATIONS

Defendant Bank of America, N.A. (BANA) moves, pursuant to Code of Civil Procedure sections 435 through 437, to strike, from the First Amended Complaint (FAC), certain allegations and prayers relating to Plaintiff's claim for punitive damages asserted against Bank of America.

The issues raised by the motion are MOOT in light of the Court's concurrent order sustaining BANA's demurrer to the FAC without leave to amend.

The clerk shall provide notice of this ruling to the parties forthwith. BANA to prepare a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

Don Lee v. Bank of America, N.A., et al.

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DEMURRER TO THE FIRST AMENDED COMPLAINT

Bank of America, N.A. (BANA) demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (c), to the First Amended Complaint (FAC) on the grounds that another action is pending in the Court of Appeal on the same facts and issues. BANA further demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e), to each cause of action purportedly set forth in the FAC on the grounds that Plaintiff fails to allege facts sufficient to state a claim against BANA.

The Court rules on BANA's request for judicial notice as follows.

Request Nos. 1 and 3: GRANTED. The Court takes judicial notice of the Complaint filed in this action, and the Complaint filed in case No. 17CV42098, but not for the truth of the matters asserted therein.

Request Nos. 2, and 4-12: DENIED. The respective subject matters of these request numbers are not relevant to the Court's resolution of the issues raised by the demurrer.

The Court finds that the allegations of the FAC involve the same parties and the same subject matter as the Complaint filed in *Don Lee v. Bank of America, N.A., et al.*, Case Number 17CV42098 in this Court (098 Case). (Compare FAC with the Complaint in 098 Case attached as Exhibit D to the FAC.) Plaintiff acknowledges as much through his Opposition to this demurrer. (See Opposition at 16:4-6.) Plaintiff alleges in the FAC, and concedes through his Opposition, that the 098 Case is ongoing. (See FAC at ¶ 19, Opposition at 16:5-6.)

"It is well settled that the law abhors vexatious and unnecessary litigation wherein several lawsuits are brought involving the same parties and subject matter. (Citation.) An objection to a complaint on the basis that a substantially similar lawsuit is pending is properly raised by demurrer (Citation.), provided the defect appears on the face of the pleading or from judicially noticed facts." (*Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-92.) In this case, because the Complaint in the 098 Case is both attached as Exhibit D to the FAC, and a proper subject of BANA's request for judicial notice, the defects appear both in the pleading *and* through judicially noticed facts.